

Amendment [1]

Trust tax return

2023

Day Month Year to Day Month Year

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or specify period if part year or approved substitute period.

Notes to help you prepare this tax return are provided in the Trust tax return instructions 2023 (the instructions), available on our website www.ato.gov.au

Return year 2023

Tax file number (TFN)

504 805 543

Have you attached any 'other attachments'?

No

See the Privacy note in the Taxpayer's declaration.

Name of trust

THOMIC PROPERTY GROUP TRUST

Australian business number (ABN)

41 984 114 591

Current postal address

If the address has not changed, print it exactly as shown on the last notice of assessment or the last tax return lodged.

P O BOX 115

GEELONG

VIC

3220

Postal address on previous tax return

If the address has changed, print your previous address exactly as shown on the last notice of assessment or the last tax return lodged.

PART A Electronic lodgment declaration (Form P, T, F, SMSF or EX)

This declaration is to be completed where the tax return is to be lodged via an approved ATO electronic channel. It is the responsibility of the taxpayer to retain this declaration for a period of five years after the declaration is made, penalties may apply for failure to do so.

Privacy

The ATO is authorised by the Taxation Administration Act 1953 to request the provision of tax file numbers (TFNs). The ATO will use the TFNs to identify each partner or beneficiary or entity in our records. It is not an offence not to provide the TFNs. However, you cannot lodge your tax return electronically if you do not quote your TFN.

Taxation law authorises the ATO to collect information and disclose it to other government agencies, including personal information about the person authorised to sign the declaration. For information about privacy go to ato.gov.au/privacy

The Australian Business Register

The Commissioner of Taxation, as Registrar of the Australian Business Register, may use the ABN and business details which you provide on this tax return to maintain the integrity of the register.

Please refer to the privacy statement on the Australian Business Register (ABR) website (www.abr.gov.au) for further information – it outlines our commitment to safeguarding your details.

Electronic funds transfer - direct debit

Where you have requested an EFT direct debit some of your details will be provided to your financial institution and the Tax Office's sponsor bank to facilitate the payment of your taxation liability from your nominated account.

Tax file number 504 805 543

Year 2023

Name of partnership,
trust, fund or entity THOMIC PROPERTY GROUP TRUST

I authorise my tax agent to electronically transmit this tax return via an approved ATO electronic channel.

Important

Before making this declaration please check to ensure that all income has been disclosed and the tax return is true and correct in every detail. If you are in doubt about any aspect of the tax return, place all the facts before the Tax Office. The tax law provides heavy penalties for false or misleading statements on tax returns.

Declaration: I declare that:

- the information provided to the agent for the preparation of this tax return, including any applicable schedules is true and correct, and
- the agent is authorised to lodge this tax return.

Signature of partner,
trustee or director

Date

PART B Electronic funds transfer consent

This declaration is to be completed when an electronic funds transfer (EFT) of a refund is requested and the tax return is being lodged through an approved ATO electronic lodgment channel.

This declaration must be signed by the partner, trustee, director or public officer prior to the EFT details being transmitted to the Tax Office. If you elect for an EFT, all details below must be completed.

Important: Care should be taken when completing EFT details as the payment of any refund will be made to the account specified.

Agent's reference
number 47780008

Account Name J GIUFFRE & CO TRUST ACCOUNT

I authorise the refund to be deposited directly to the specified account.

Signature

Date

16/4/2024

Declarations**TAXPAYER'S DECLARATION****Important**

Before making this declaration check to ensure that all income has been disclosed and the tax return, all attached schedules and any additional documents are true and correct in every detail. If you are in doubt about any aspect of the tax return, place all the facts before the ATO. The income tax law imposes heavy penalties for false or misleading statements in tax returns. **This declaration must be signed by a trustee or public officer.**

Privacy

The ATO is authorised by the Taxation Administration Act 1953 to request the provision of tax file numbers (TFNs). The ATO will use the TFNs to identify each beneficiary in our records. It is not an offence not to provide the TFNs. However, if the TFNs are not provided, it could increase the chance of delay or error in each beneficiary's assessment.

Taxation law authorises the ATO to collect information including personal information about the person authorised to sign the declaration. For information about your privacy go to ato.gov.au/privacy

DECLARATION:

I declare that the information on this tax return, including any attached schedules and additional documentation is true and correct.

Signature



Date 16/4/2024

Hours taken to prepare and complete this tax return

TAX AGENT'S DECLARATION

I, J GIUFFRE & CO PTY LTD

declare that this tax return has been prepared in accordance with information supplied by the taxpayer, that the taxpayer has given me a declaration stating that the information provided to me is true and correct and that the taxpayer has authorised me to lodge the tax return.

Agent's signature



Client's reference

THOMTPG

Contact name

JOSEPH GIUFFRE

Date 25/03/2024

Agent's phone number (include area code)

Area code 03 Telephone number 5229 6526

Agent's reference number

47780008

Office use only

Index X

58 Statement of distribution - continued

Income to which no beneficiary is presently entitled and in which no beneficiary has an indefeasible vested interest, and the trustee's share of credit for tax deducted.

Assessment calculation code	V	Share of credit for TFN amounts withheld from payments from closely held trusts	O
Share of income of the trust estate	W	Capital gains	F
Share of credit for tax withheld – foreign resident withholding (excluding capital gains)	L	NCMI capital gains	F1
Australian franking credits from a New Zealand franking company	N	Excluded from NCMI capital gains	F2
Share of income	Primary production	Share of credit for foreign resident capital gains withholding amounts	Z
	PP – NCMI	Attributed foreign income	G
	PP – Excluded from NCMI	Other assessable foreign source income	H
	Non-primary production	Foreign income tax offset	I
	Non-PP – NCMI	Share of National rental affordability scheme tax offset	R
	Non-PP – Excluded from NCMI	Share of other refundable tax offsets	X
	Credit for tax withheld where ABN not quoted	Early stage venture capital limited partnership tax offset	T
	Franked distributions	Early stage venture capital limited partnership tax offset carried forward from previous year	K
	Franking credit	Early stage investor tax offset	J
	TFN amounts withheld	Early stage investor tax offset carried forward from previous year	M

If you completed labels T, K, J or M, attach the information requested in the instructions.

59 Choice for resident trustee to be assessed to capital gains on behalf of beneficiaries

Assessment calculation code **X**

Amount of capital gains on which the trustee has chosen to be assessed on behalf of beneficiaries **Y**

Items 60 and 61 must be answered for all trusts - if you answer yes to any of these questions, answer Yes to the 'other attachments' question on page 1 of this tax return.

60 Beneficiary under legal disability who is presently entitled to income from another trust

Was any beneficiary in this trust, who was under a legal disability on 30 June 2023, also presently entitled to a share of the income of another trust?

N

Print Y for yes or N for no.

If yes, or the answer is not known, furnish the information requested in the instructions.

61 Non-resident trust

Is the trust a non-resident trust? **N** Print Y for yes or N for no.

If yes, state the amount of income derived outside Australia to which no beneficiary is presently entitled. Print NIL if applicable.

Full name of the trustee to whom notices should be sent

If the trustee is an individual, print details here.

Title—for example,
Mr, Mrs, Ms, Miss

Surname or family name

Given names

If the trustee is a company, print details here including ABN.

Name

THOMIC PROPERTY PTY LTD

ABN

Daytime contact phone number

Area code 0411

Telephone number 757991

Family trust election statusIf the trustee has made, or is making, a family trust election, write the four-digit **income year specified** of the election (for example, for the 2022-23 income year write 2023).If revoking or varying a family trust election, print **R** for revoke or print **V** for variation and complete and attach the Family trust election, revocation or variation 2023.**Interposed entity election status**

If the trustee has an existing election, write the earliest income year specified. If the trustee is making one or more elections this year, write the earliest income year being specified and complete an Interposed entity election or revocation 2023 for each election.

If revoking an interposed entity election, print **R** and complete and attach the Interposed entity election or revocation 2023.**Type of trust**

Print the code representing the type of trust.

T

Print X if also a charity

If code D, write the date of death.

Day Month Year

CCIV sub-fund trusts

Do you own shares that are referable to a sub-fund within the same CCIV as you?

Print Y for yes or N for no.

Must be completed if Type of trust is V

Managed investment trusts

Is the trust a managed investment trust (MIT)?

N

Print Y for yes or N for no.

Must be completed if Type of trust is either F, M, U, P or Q

MIT type

CODE

If the trust is a managed investment trust, has the trustee made an election into capital account treatment?

Print Y for yes or N for no.

Is any tax payable by the trustee?

N

Print Y for yes or N for no.

Final tax return

N

Electronic funds transfer (EFT)

Use Agent Trust Account?

Y

We need your financial institution details to pay any refund owing to you, even if you have provided them to us before.

Write the BSB number, account number and account name below.

(See relevant instructions.)

BSB number
(must be six digits)

633108

Account number

124838624

Account name

J GIUFFRE & CO TRUST ACCOUNT

1 Description of main business activityIndustry
code **A****6 Tax withheld**

Tax withheld where ABN not quoted

TCredit for tax withheld - foreign resident
withholding (excluding capital gains)**U****8 Partnerships and trusts****Primary production**

Distribution from partnerships

A

Share of net income from trusts

ZDeductions relating to amounts shown at **A** and **Z****S**

Net primary production amount

Non-primary productionDistribution from partnerships,
less foreign income**B**

219,468

Share of net income from trusts, less capital
gains, foreign income and franked distributions**R**Deductions relating to amounts shown at **B** and **R****T**

Franked distributions from trusts

FDeductions relating to franked
distributions from trusts in label **F****G**Net non-primary
production amount

219,468

Capital gains from another trust and net foreign capital gains need to be included at item 21.
Amounts of foreign income must be included at item 22 or 23.**Share of credits from income**Share of credit for tax withheld
where ABN not quoted**C**Share of franking credit from
franked distributions**D**Share of credit for TFN amounts withheld from
interest, dividends and unit trust distributions**E**Credit for TFN amounts withheld from
payments from closely held trusts**O**Share of credit for tax withheld
- foreign resident withholding
(excluding capital gains)**U**

TFN

Auto

P / T

P

Trust Code

Name INALAA PARTNERSHIP

PP Income

NPP Income

Franked Dist From T

ABN Credit

Franking Credit

TFN Credit

TFN Trust

FRW Credit

Net Small Business Income

15 Total of items 5 to 14

Add the boxes

219,468

Deductions relating to franked distributions should
not include deductions included at G item 8

Franked distributions

R**18 Other deductions - show only deductions not claimable at any other item**

Name of each item of deduction

Amount

PASSED DIST OF LOSSES UNACCOUNTED FOR

69,413

Q

69,413

19 Total of items 16 to 18

69,413

20 Net Australian income or loss - other than capital gains

Subtract item 19 from item 15.

\$

150,055

Capital gains

21 Capital gains

Do you need to complete a *Capital gains tax (CGT) Schedule 2023*?

Did you have a CGT event during the year?

G ☒ NAnswer yes at **G** if the trust had an amount of capital gains from another trust.

Have you applied an exemption or rollover?

M ☒Type Y for yes
N for no.

Code

Net capital gain

A

Credit for foreign resident capital gains withholding amounts

B

Net capital losses brought forward from prior years

Net capital losses carried forward to later income years

Non-Collectables

Collectables

24 Total of items 20 to 23

Add the boxes

150,055

26 Total net income or loss

Subtract item 25 from item 24.

150,055

Overseas transactions / thin capitalisation

29 Overseas transactions

Was the aggregate amount of your transactions or dealings with international related parties (including the value of any property/service transferred or the balance of any loans) greater than \$2 million?

W ☒ NPrint Y for yes
or N for no.

Did the thin capitalisation provisions affect you?

O ☒ NPrint Y for yes
or N for no.

Interest expenses overseas

D

Royalty expenses overseas

EIf you answered Yes at label W or O or completed D or E, complete and attach the *International dealings schedule 2023*.

Was any beneficiary who was not a resident of Australia at any time during the income year, 'presently entitled' to a share of the income of the trust?

A ☒ NPrint Y for yes
or N for no.

If you answered Yes at label A, attach the information requested in the instructions.

Transactions with specified countries

Did you directly or indirectly send to, or receive from, one of the countries specified in the instructions, any funds or property or

Do you have the ability or expectation to control, whether directly or indirectly, the disposition of any funds, property, assets or investments located in, or located elsewhere but controlled or managed from one of those countries?

C ☒ NPrint Y for yes
or N for no.

Personal services income**30 Personal services income**

Does your income include an individual's personal services income (PSI)? **N** ☐ Print Y for yes or N for no.

Total amount of PSI included at item 5 income labels **A**

Total amount of deductions against PSI included at item 5 expense labels **B**

Did you satisfy the results test in respect of any individual? **C** ☐ Print Y for yes or N for no.

Do you hold a personal services business (PSB) determination in respect of any individual? **D** ☐ Print Y for yes or N for no.

For any individual for whom you did not satisfy the results test or hold a PSB determination, and each source of their PSI income yielded less than 80% of their total PSI, indicate if you satisfied any of the following personal services business tests - print **X** in the appropriate box(es).

Unrelated clients test **E1** ☐ Employment test **E2** ☐ Business premises test **E3** ☐

Non-concessional MIT income**32 Non-Concessional MIT Income (NCMI)****Business income****Primary production**

Non-concessional MIT Income (NCMI) **A**

Excluded from NCMI **B**

Amounts shown at A and B must also be included at 5G PP – Other business income.

Non-Primary production

Non-concessional MIT Income (NCMI) **C**

Excluded from NCMI **D**

Amounts shown at C and D must also be included at 5H Non-PP – Other business income.

Partnerships and trusts**Primary production**

Non-concessional MIT Income (NCMI) **E**

Excluded from NCMI **F**

Amounts shown at E and F must also be included at 8A Distribution from partnerships.

Non-concessional MIT Income (NCMI) **G**

Excluded from NCMI **H**

Amounts shown at G and H must also be included at 8Z Share of net income from trusts.

Non-Primary production

Non-concessional MIT Income (NCMI) **I**

Excluded from NCMI **J**

Amounts shown at I and J must also be included at 8B Distribution from partnerships, less foreign income.

Non-concessional MIT Income (NCMI) **K**

Excluded from NCMI **L**

Amounts shown at K and L must also be included at 8R Share of net income from trusts, less capital gains, foreign income and franked distributions.

Capital gains

NCMI **X**

Excluded from NCMI **Z**

The amounts shown at labels X and Z must be included in the calculation of the amount at 21A Net capital gain.

Key financial information33 All current assets **F** 34 Total assets **G** 035 All current liabilities **I** 36 Total liabilities **J**

55 Non-refundable carry forward tax offsets

Early stage venture capital limited partnership tax offset

H

Early stage investor tax offset

I **Income of the trust estate**57 Income of the trust estate **A** 150,055**Statement of distribution****58 Statement of distribution****Distribution details**

Complete the distribution details on the following pages for BENEFICIARY 1 to 3 if required, and for Income to which no beneficiary is presently entitled and in which no beneficiary has an indefeasible vested interest, and the trustee's share of credit for tax deducted, if it applies.

If there are more than three beneficiaries see the instructions for more information.

Note: It is not an offence not to quote a TFN for a beneficiary. However, TFNs help the Tax ATO to correctly identify each beneficiary's tax records. The ATO is authorised by the Income Tax Assessment Act 1936 and the Income Tax Assessment Act 1997 to ask for information in this tax return. We need this information to help administer the tax laws. To make a correct Trustee Beneficiary (TB) statement you must quote the TFN of a resident trustee beneficiary of a closely held trust.

Note: If the trust needs to provide annual reports under the Trustee Beneficiary Rules or the TFN withholding rules you will be able to do so by completing the information in the statement of distribution.

58 Statement of distribution - continued

Beneficiary's name and tax file number or postal address

Distribution Fraction

1

%

Tax file number 529 931 770

Entity code

U C

Date of birth

See the Privacy note in the Taxpayer's declaration.

Name THOMAS EMPIRE PTY LTD

Address UNIT 1/91 THE AVENUE

OCEAN GROVE

VIC

3226

Assessment calculation code

V

34

Entity code

U

C

Share of credit for TFN amounts withheld from payments from closely held trusts

O

Share of income of the trust estate

W

150,055

Capital gains

F

Share of credit for tax withheld – foreign resident withholding (excluding capital gains)

L

NCMI capital gains

F1

Australian franking credits from a New Zealand franking company

N

Excluded from NCMI capital gains

F2

Primary production

A

LOSS

Share of credit for foreign resident capital gains withholding amounts

Z

PP – NCMI

A1

Attributed foreign income

G

PP – Excluded from NCMI

A2

Other assessable foreign source income

H

Share of income

Non-primary production

B

150,055

LOSS

Invest

/

Other

/

150,055

Non-PP – NCMI

B1

Non-PP – Excluded from NCMI

B2

Credit for tax withheld where ABN not quoted

C

Franked distributions

U

Invest

/

Other

/

Franking credit

D

TFN amounts withheld

E

Share of National rental affordability scheme tax offset

R

Exploration credits distributed

M

Early stage venture capital limited partnership tax offset

T

Early stage investor tax offset

J

Div 6AA Eligible income

C1

Small business income tax offset information

Share of net small business income

Y

Non-resident beneficiary additional information

s98(3) assessable amount

J

s98(4) assessable amount

K

TB statement information

For each trustee beneficiary, indicate whether you will be making a TB statement:

TB statement?

Print Y for yes or N for no.

Tax preferred amounts

P

Untaxed part of share of net income

Q

Annual Trustee Payment report information

Distribution from ordinary or statutory income during income year

S

Total TFN amounts withheld from payments

T

Amendment details**Sequence 1****THOMIC PROPERTY GROUP TRUST****TFN : 504 805 543**

Amendment type indicator :

4

Taxpayer Error

Reasons :

THE CLIENT ACCIDENTALLY OMITTED PARTNERSHIP LOSSES THAT SHOULD HAVE BEEN
ACCOUNTED FOR.
